

# FORM 4 — APPLICATION IN EXISTING PROCEEDINGS

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QUEENSLAND INDUSTRIAL RELATIONS COMMISSION — *Workers' Compensation and Rehabilitation Act 2003 (Qld)* — Matter No: WC/2024/227

**BETWEEN:** CORY LEA SHEPHERD (Appellant) **and** WORKERS' COMPENSATION REGULATOR (Respondent)

**APPLICATION IN EXISTING PROCEEDINGS** (*Industrial Relations (Tribunals) Rules 2011, r 64G*)

## OVERVIEW

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This is an application under r 64G for the Commission to decide MSH's objection to a sealed Notice of Non-Party Disclosure. The Appellant has narrowed the Notice, withdrawn what the record does not need, and seeks production by a single self-executing step — a server-side export of records MSH already holds, bounded by identified custodian, date-range and phrase-family, requiring no review or reading of any email. Where a record is said not to exist, the Appellant asks only that the non-existence be stated on oath after a defined search. The objection therefore reduces to one question: whether that bounded export and produce-or-swear verification should be ordered, or whether a non-party's un-sworn assertion that its emergency-code paging logs and fatigue records "do not exist" should instead be accepted. The Appellant does not seek any medical records, the financial or payroll data of other employees, or any patient or other sensitive personal or health information; where any such identifying information appears in the records produced, it may be redacted (Part B(d)).

## PART A — APPLICANT

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Applicant: Cory Lea Shepherd, Appellant (Self-Represented). This application is supported by the Affidavit of Cory Lea Shepherd affirmed 18 June 2026 ("the Affidavit"), and is made in respect of the Notice of Non-Party Disclosure (Form 29) sealed by the Industrial Registry on 22 April 2026 ("the Form 29"). The Form 29 was served on Metro South Hospital and Health Service ("MSH") as the nominated party required to produce, and on the Line Manager (Logan Hospital Switchboard) and the Director responsible for the Switchboard function as the persons affected by the notice — each a non-party about whom information is sought, required to be served under r 64D(1)(a), identified by position title and served via the representative service address (Executive Director, Clinical Governance, Risk & Legal, Metro South HHS), MSH being served last as r 64C(2) requires.

## PART B — DISPOSITION SOUGHT

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The Appellant respectfully applies, pursuant to r 64G of the *Industrial Relations (Tribunals) Rules 2011*, for the objection of MSH to the Form 29 to be decided as follows:

(a) Pursuant to r 64G(2), the Notice be upheld as varied in the terms of Schedule A (the pressed Items being 1, 2, 3(a), 3(b), 9, 10 and 19 — Item 10 confined, per Schedule A, to (a) an aggregate metadata-only count,

(b)–(d) the phrase-family and bounded-correspondence exports, and (e) the bounded Payroll → Line-Manager AVAC correspondence), the objection being otherwise overruled, and MSH be ordered to produce the documents within that varied scope by native electronic export of the messages and records returned by the server-side filters described in the Form 29 (identified custodians, identified date-ranges and identified phrase-families) — no inbox review, reading or relevance-assessment of any email being sought or required.

(b) **Verification affidavit (produce-or-swear).** MSH is ordered, by its Chief Executive or a delegated Director, to file and serve a single affidavit within seven (7) business days of the order which, in respect of each pressed Item (Items 1, 2, 3(a), 3(b), 9, 10 and 19), the AVAC payroll export sought at Item 16, and each Item on which MSH asserts non-existence, destruction or irrelevance (Items 3(c), 4, 5, 7, 18 and 20): (i) confirms on oath that the server-side export or search was in fact undertaken, identifying the name and position of the person who conducted it, and the custodian, system, date-range and method applied; (ii) produces the records returned by that search; (iii) where the search returns no record, states on oath that the document does not exist, deposing the basis on which it is said not to exist — and, where any document already before the Commission or disclosed in this proceeding appears to fall within an Item for which non-existence is maintained (in particular, as to Item 20, the correspondence of 15–16 May 2024 disclosed by the Respondent on 11 June 2026), identifies that document and either produces it or states on oath the basis on which it is said to fall outside the Item; and (iv) is given by the Chief Executive or delegated Director as the accountable deponent, who may depose to matters within the knowledge of a systems or eHealth officer — in particular, for the SPOK emergency-code records (Items 1–2), the date and nature of the system upgrade, whether the pre-upgrade records were migrated, archived or destroyed, and the identity, author, holder and source system of the "spreadsheet of recorded MET calls" referred to in MSH's letter — on information and belief from a named officer, identifying that officer's position and exhibiting or separately swearing that officer's account; and (v) addresses, in respect of each Item, the specific matters set out in Schedule C.

(c) To the extent any extension is required, the time for the production at (a) is fixed at a date certain and not contingent upon the supply of any pleading to a non-party.

(d) **Privacy safeguard.** If any question of privacy or confidentiality is raised in respect of the export, the documents be produced to the Commission for its inspection in the first instance, with access to the parties as the Commission directs and subject to any order under s 580 of the *Industrial Relations Act 2016*.

(e) **Confidentiality of sensitive material (s 580 IR Act 2016) — a single order in two limbs.** *Limb 1 (statutory secrecy — PID):* non-publication of any information identifying the fact or content of the Public Interest Disclosure (reference PID 24-ESU-1130) and the Ethical Standards Unit determination, giving effect to the confidentiality required by s 65 of the *Public Interest Disclosure Act 2010* (Qld). *Limb 2 (confidential by agreement):* a notation that the witness-conferencing material before the Commission is received subject to its existing confidentiality and is not to be published. (Any patient-identifying information appearing in the records produced may be redacted, and is in any event subject to the Commission-inspection safeguard at Part B(d); the Appellant seeks no order in respect of his own medical evidence, which is a matter for the substantive appeal.)

(f) Costs reserved.

(g) Such further or other orders as the Commission considers appropriate.

## SCHEDULE A — DISPOSITION OF THE TWENTY ITEMS

The Appellant does not press the Form 29 in full. He has narrowed and disposed of the twenty Items as set out in the overview table below, each pressed Item anchored to the stressor pleaded in the Amended 9A; the detail and the disposition notes follow.

### Disposition of all twenty Items (overview):

| Item | Disposition                               | Scope / basis                                                                             |
|------|-------------------------------------------|-------------------------------------------------------------------------------------------|
| 1    | Pressed (produce or swear)                | SPOK emergency-paging export, 17–18 Mar 2024                                              |
| 2    | Pressed                                   | Aggregate SPOK activation counts                                                          |
| 3(a) | Pressed                                   | Complaints corpus + monthly count (named custodians)                                      |
| 3(b) | Pressed                                   | Management discussion / action on those complaints                                        |
| 3(c) | Produce-or-swear                          | "no consequential changes" — to be sworn                                                  |
| 4    | Produce-or-swear                          | FRMS risk-assessment record                                                               |
| 5    | Produce-or-swear                          | fatigue framework / training records                                                      |
| 6    | Already produced                          | Role Description (Manager, Switchboard)                                                   |
| 7    | Produce-or-swear                          | FRMS register entries                                                                     |
| 8    | Withdrawn                                 | duplicates the presence point in Item 9                                                   |
| 9    | Pressed                                   | Line Manager's own swipe records, confined to conduct windows                             |
| 10   | Pressed                                   | Manager email by server-side filter, sub-sets (a)–(e)                                     |
| 11   | Already produced                          | myHR audit trail (COVID leave)                                                            |
| 12   | Produced (audit trail); balance withdrawn | comparator privacy (r 64E(4)(e)–(f))                                                      |
| 13   | Already produced                          | HR sub-delegation instrument                                                              |
| 14   | Withdrawn                                 | text messages on the Line Manager's personal device — outside MSH's possession or control |
| 15   | Already produced                          | leave-takings report, 19 Mar 2024                                                         |

| Item | Disposition                | Scope / basis                                          |
|------|----------------------------|--------------------------------------------------------|
| 16   | Pressed to the AVAC export | DSVFs produced, not the AVAC payroll export            |
| 17   | Withdrawn                  | comparator payroll — privacy (r 64E(4)(e))             |
| 18   | Produce-or-swear           | communication book / 15 Nov 2023 business-case minutes |
| 19   | Pressed (narrowed)         | union correspondence, 18 May – 18 Jun 2024             |
| 20   | Produce-or-swear           | operational / HR response, 13–31 May 2024              |

The scope and relevance of each pressed Item are set out in the Relevance Map at Schedule B; the Item 10 sub-sets (a)–(e) are summarised at Part B(a).

**Produce-or-swear (the Items so marked in the overview).** For each, the Appellant neither accepts nor rejects MSH's informal assertion of non-existence, destruction or irrelevance; he asks only that it be produced, or its non-existence (or destruction) sworn under Part B(b) and Schedule C after a defined search. A sworn statement that a hospital does not retain its emergency-code paging logs (Items 1–2), holds no fatigue risk assessment for the 17–18 March 2024 pairing (Item 4), or destroyed the communication-book record (Item 18) is of obvious significance to the s 32(5)(a) inquiry; the Appellant reserves any argument on the effect of a sworn negative until the verification affidavit is filed. As to **Item 18**, only the removal of a page is admitted (Form 24, Para 6; Stressor 1(b)); that admission does not establish the fate of the communication book or the 15 November 2023 business-case minutes.

**Already produced (no order needed) — Items 6, 11, 12 (audit trail), 13, 15** (disclosed with MSH's letter of 5 June 2026; Affidavit ¶51). As to **Item 16** (AVAC payroll export, PRN 15397775 and 15605601), what MSH produced are **Daily Staffing Variance Forms**, each signed by the Line Manager as "Switchboard Manager" — not the AVAC payroll-system export the Notice sought; the Appellant presses Item 16 only to the extent of that export, to be produced under Part B(b) (for PRN 15397775 and 15605601) or its non-existence sworn.

**Withdrawn — Items 8, 14 and 17, and the comparator balance of Item 12.** Item 8 (management-system login records) duplicates the presence point captured by Item 9; Item 14 (text messages) was exchanged on the Line Manager's personal mobile device and is outside MSH's possession or control (cf. r 64B); and the comparator payroll export (Item 17) and the balance of the comparator pandemic-leave material (Item 12) are not pressed, on the affected staff's privacy grounds (r 64E(4)(e)–(f)).

**Narrowing of Item 19 (date and scope).** Item 19 sought union-delegate correspondence over 1 March – 30 June 2024, confined to identified custodians (the Line Manager, the Director, the Logan Hospital health-team mailbox, and HR / People and Culture). The Appellant narrows the pressed period to 18 May 2024 (his email to Ms Heather Hayes of Together Queensland) through to the injury date, 18 June 2024 — capturing the union's forwarding of that request to MSH and MSH's handling of it. The earlier notification of intention (11 August 2023) is admitted as sent (Form 24, Para 18) and needs no disclosure; the failure to facilitate the appointment for over 9 months is denied (Form 24, Para 19) and is the contested fact this Item goes to.

MSH's objection that Item 19 would require searching ~20,006 staff mailboxes mischaracterises it: the Item is confined to the custodians above — indeed the very custodians MSH itself proposed in its 5 June 2026 letter. As to date, MSH's suggested 17–18 March 2024 window predates the 18 May union request and so could not capture the correspondence at all; the apt and far narrower window is 18 May – 18 June 2024. The Item seeks only correspondence already held in those custodians' mailboxes (received from Together Queensland), not Together's own records, so no production notice to Together is required. The Appellant is content for MSH to satisfy Item 19 by a sworn statement of what was received from Together (Ms Hayes) and what action was taken.

## PART C — GROUNDS

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1. **The matter in issue.** The Form 29 is directly relevant to the matter in issue in the appeal (the s 32(5)(a) "reasonable management action" defence) as articulated in the Amended Statement of Facts and Contentions filed 7 April 2026 ("the Amended 9A"). The Continuation Schedule to the Form 29 states that matter in issue and ties each Item, by a Relevance Anchor Table, to specified stressors pleaded in the Amended 9A and to the admitted facts in the Respondent's Form 24.
2. **The health dimension.** The documents are not collateral to a private dispute; they go to whether the patient-safety and clinical-governance functions of the Switchboard were compromised. As deposed (Affidavit, ¶¶6–25), the Switchboard is the hospital's communications hub — where emergency codes are activated and urgent pathology results relayed doctor-to-doctor. The misrouted-call corpus (Item 3(a)), the manager's presence record (Item 9) and her directives (Item 10) bear directly on whether those time-critical communications were delayed or misdirected — a patient-safety reality visible only from within MSH's own systems, and inseparable from the s 32(5)(a) evaluation.
3. **Possession and control.** As deposed (Affidavit, para 46), each pressed Item is recorded in documents within MSH's exclusive possession or control — its email system, its Active Directory / Entra / Citrix identity-management environment, its Security Access swipe-card system, its meeting and governance records, and its roster and HR systems. The Appellant, as the Switchboard operator, cannot produce them.
4. **No other reasonably simple, inexpensive way (r 64B).** The probative content of the documents is their completeness — the scale, frequency and pattern of the conduct pleaded. The Appellant can produce individual examples (and has annexed them to the Affidavit), but cannot export the complete corpus. There is no other reasonably simple, inexpensive way for the Appellant to prove what the documents show, save by bulk server-side export from MSH's systems, which is achievable at minimal cost and requires no inbox review.
5. **The period is the course of conduct — not a narrow window, and not unlimited.** Because the injury developed cumulatively over the course of management conduct, the documents go to the volume and frequency of that conduct. The Form 29 noticed the email-based Items (3(a), 3(b) and 10) for the period 1 December 2023 to 30 June 2024, and the Appellant presses no period earlier or broader than the Notice; the SPOK paging Item (Item 1) is confined to 17–18 March 2024. Confining disclosure to those two days alone would sample the conduct, not show it; the period the Notice fixes is the appropriate measure of the pleaded course (and see the global evaluation of a composite course in *Delaney v Q-COMP* [2005] QIC 11; 178 QGIG 197). The volume of directives from the Line Manager to the Switchboard across the noticed period is sought not by producing the corpus but by an aggregate monthly count (sender, date, recipient-list

and subject only — no message bodies: Schedule A, Item 10), which proves the scale without any review of content (Stressor 1(a)).

**6. The fatigue-governance records (Items 4, 5 and 7).** MSH's own letter states that fatigue risk management at the Switchboard was "implemented... after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard" — which concedes that a fatigue risk-management framework applies to the Switchboard work area, and locates its implementation there only after the date of injury. That framework reflects the Queensland Health Fatigue Risk Management System (FRMS Implementation Guideline QH-GDL-401-3.3). MSH's objection that fatigue records do not exist because "Fatigue Risk Management System training only applies to health practitioners and clinical assistants" answers a different question: Item 5 concerns training, but Items 4 and 7 concern the fatigue risk-assessment and register records. Whether those records exist for the Switchboard as at 17–18 March 2024 is precisely what the verification on oath (Part B(b)) should establish.

**7. The objection cannot rest on non-existence.** MSH itself produced documents responsive to Items 6, 11, 12, 13, 15 and 16 with its 5 June 2026 letter, and the Respondent disclosed further responsive material on 11 June 2026 (the 15–16 May 2024 correspondence within the Item 20 window) — establishing that the classes of record sought are real and retrievable from MSH's systems. The Appellant has also annexed individual examples (the manager's 9 May 2024 email; the 18–20 May 2024 union correspondence) which show the same on their face.

**8. The application is not oppressive — it seeks an export, not a review.** The Appellant seeks only the native electronic export of the records returned by a self-executing server-side filter (the identified custodians, date-ranges and phrase-families in the Form 29); no inbox review, reading or relevance-assessment by MSH is sought or required. The relief is the antithesis of a general search, and is offered subject to nil-result discharge (Part B(b)). Any claim of legal professional privilege may be made item-by-item over a specific record and is no basis for resisting the export itself; and any question of privacy or confidentiality is met by production to the Commission in the first instance (Part B(d)). No question of privilege or privacy justifies refusing the export — at most it governs the manner of access, which is the Commission's to manage.

**9. The verification affidavit is the proportionate course.** Framed as produce-or-swear, the order leaves MSH a single, bounded step: it either produces the documents, or verifies their non-existence on oath after a defined search. Either course resolves the objection without an item-by-item production dispute. The power to make the order arises under r 64G(2), which empowers the Commission to make any order appropriate to its decision of the objection, together with the Commission's general power to give directions for the conduct of the proceeding; the order does no more than ensure the objection — production, or verified non-existence — is resolved on a proper evidentiary footing. For each Item, MSH must therefore either produce the record or swear, after a defined search, that it does not exist; there is no third answer, and an un-sworn assertion of non-existence in correspondence is not a basis on which the objection can be sustained. The Appellant respectfully submits this is the orderly and proportionate disposition.

**10. The model-litigant expectation.** In *State of Queensland (Queensland Police Service) v Workers' Compensation Regulator* [2025] QIRC 203 (O'Neill IC), the Commission applied the model-litigant principles to a State respondent in a disclosure dispute. While that duty binds the Regulator as a party, the same expectation of candour should inform how a government entity such as MSH approaches a bounded,

self-executing export: it should facilitate production, and a bare assertion that its emergency-code logs or fatigue records "do not exist" should be tested on oath, not accepted.

**11. Evidentiary context.** The Respondent obtained the Appellant's medical records under a Form 29 never served on him; the Respondent admits the non-service, saying it was not required to serve him as a party (Form 24, Para 25). The Appellant does not agitate the merits of that course here, but the contrast is instructive: he cannot simply obtain MSH's records — he must serve a sealed Notice on MSH and the persons affected (rr 64C, 64D), absorb their objection (r 64E) and bring this application (r 64G); his own records were taken from a third party without the Notice ever reaching him.

## **PART C2 — MSH'S OBJECTIONS ANSWERED (letter of 5 June 2026, K-LM26/729, signed by the Chief Executive)**

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MSH's objections reduce to three refrains, each of which the Notice already answers — and the letter itself supplies several of the answers the disclosure was designed to obtain.

1. *"We have not received the Form 9A, so we cannot assess relevance."* The Notice does not depend on the supply of the parties' pleadings to a non-party. The Continuation Schedule states the matter in issue and ties each Item, by a Relevance Anchor Table, to a specified Stressor and an admitted Form 24 fact on its face (r 64C). Relevance is demonstrable from the Notice itself; the absence of the Form 9A in MSH's hands is not a ground under r 64E(4).
2. *"Compliance would require eHealth to review and search individual staff email accounts" (Items 3(a), 10).* It would not. The Appellant seeks a server-side export (a self-executing filter bounded by identified custodian, identified date-range and identified phrase-family) and expressly disclaims any inbox review (Notice, Administrative Concessions; Part B(a)). MSH's "expense and inconvenience" objection rests on a characterisation of the request as a manual account-by-account search, which is incorrect. As to Item 3(a) in particular, MSH's own letter records that complaints about Switchboard operational errors "are made directly to the Line Manager of Switch Board and managed solely via email" — i.e. a single identified mailbox, not a hospital-wide trawl.
3. *"The matter in issue relates only to the consecutive shifts of 17–18 March 2024."* It does not — Stressor 1(a) pleads a course of conduct, of which the 7-hour break (Stressor 3) is one part. The Notice fixes the email-Items at 1 December 2023 – 30 June 2024; confining disclosure to two days would sample that course, not show it (ground 5; *Delaney v Q-COMP* [2005] QIC 11).
4. *"Item 19 would require searching the emails of ~20,006 staff."* It would not. Item 19 is confined to identified custodians (the Line Manager, the Director, the Logan Hospital health-team mailbox and HR) and is narrowed to 18 May – 18 June 2024 (Schedule A), adopting the custodians MSH itself proposed; MSH's suggested 17–18 March 2024 date predates the 18 May 2024 union request and so could not capture the correspondence.
5. *"Item 9 (building access) lacks relevance and particularity, and the Switchboard office has no swipe access."* The Appellant does not seek a switchboard-office swipe. He seeks the Line Manager's own security access-card records (by her card identity) for the collocated office area and the building — records MSH's access-control system holds — confined to the pleaded-conduct windows (Schedule A). Particularity is satisfied (one identified person; identified dates); relevance is direct (whether the manager

was on site when a directive issued or a complaint was left unactioned, going to Stressor 1(a)); and any effect on the Line Manager is managed by the Commission-inspection-first safeguard (Part B(d)), which governs the manner of access, not refusal.

**6. The letter supplies the answers, under the Chief Executive's hand.** In responding, MSH has stated: (a) *No remedial change* — MSH states there have been "no 'consequential' changes to operating procedures over the period requested" (Item 3(c)): nothing was changed to remedy the misroute complaints — although operational changes that worsened the position were in fact made during the period (the unilateral "effective immediately" directives altering call-handling, and the restriction of contact-number and directory updates to the new Switchboard Telecommunications Coordinator role: Affidavit ¶¶22, 26–27), so the statement is, on the Appellant's evidence, also incorrect. (b) *No fatigue framework at the time, and a restructure* — fatigue risk management at the Switchboard "occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard" (Item 5): no FRMS framework was in place at the date of injury. (c) *Emergency-code logs not retained* — the SPOK records "do not exist... records predating [the system] upgrade were not retained," yet "a spreadsheet of recorded MET calls is available for the period 17–18 March 2024" (Items 1–2). Whether that spreadsheet is a SPOK export, a separate MSH record, or the monthly call-statistics sheet the Appellant himself authors cannot be told from the letter (Schedule C requires the verification to classify it). If it is the Appellant's own sheet, it records call and code *volume* only and does not satisfy Item 1, which seeks the SPOK system-level paging data — which clinician was paged, whether each page was received or acknowledged, and any misdirection, with timestamps — that MSH alone holds (Affidavit, ¶9). If it is a separate MSH or SPOK record, it is a contemporaneous record for the exact pleaded shift and should be produced under Item 1. Either way the matter goes to the s 32(5)(a) inquiry, not to refusing production.

**7. The verification affidavit should formalise these statements.** Where MSH states a record does not exist (Items 1–2, 3(c), 4, 5, 7, 18, 20), the order at Part B(b) requires that to be sworn by the Chief Executive or a delegated Director, after a defined search by a named person and with the required contents set out Item by Item in Schedule C — so the statements made informally in the letter are placed on the evidentiary footing the appeal requires. The Item 20 answer illustrates why a sworn answer matters: MSH says that material "does not exist" because "PID24-ESU-1130" commenced in November 2024, yet the Respondent disclosed correspondence of 15–16 May 2024 — squarely within the Item 20 window — on 11 June 2026 (Affidavit, ¶52). MSH cannot swear non-existence consistently with that disclosure; the reference number is a later-assigned identifier, not the date the material came into existence. So too the Item 18 "already conceded" answer (Form 24, Para 14): only the removal of a page is admitted (Form 24, Para 6), not the fate of the communication book or the 15 November 2023 business-case minutes. Each such answer should be sworn, not asserted.

## PART D — MATERIAL RELIED UPON

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- The Affidavit of Cory Lea Shepherd affirmed 18 June 2026, and the exhibits annexed thereto ("CS-1" to "CS-4").
- Referred to and relied upon, not annexed (already before the Commission / disclosed in the proceeding): MSH's letter of 5 June 2026 (ref K-LM26/729), and the Respondent's disclosure of 11 June 2026.
- The Form 29 sealed 22 April 2026 and its Continuation Schedule.
- The Amended Statement of Facts and Contentions; the Respondent's Form 24 (Notice to Admit

Facts) and the facts admitted thereunder.

**FILED BY:** Cory Lea Shepherd, Appellant (Self-Represented) — **DATE:** 18 June 2026

## SCHEDULE B — RELEVANCE MAP

Each pressed Item is tied below to the document sought, the matter in issue (Amended 9A), the admitted Form 24 fact, and the s 32(5)(a) element it tends to prove — demonstrating, on the face of the application, that it is the documents (not merely the allegations) that are directly relevant (*State of Queensland (Department of Families) v Workers' Compensation Regulator* [2025] QIRC 179 [46]–[48]; and, by analogy under the UCPR, *Chenoweth v ING* [2004] QSC 143).

| Item | Document sought                                                                                                                                                                                                                | Matter in issue (Amended 9A)                                                         | Anchor (Form 24 admitted facts)                                                                                                                                                                                                                                                                                                                            | What the document tends to prove on s 32(5)(a)                                                                                                |
|------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------|
| 1    | SPOK emergency-paging export, 17–18 Mar 2024 (code/MET activations; response-acknowledgement timestamps; clinician/patient identifiers may be redacted)                                                                        | Stressor 3: managing life-safety codes under the 7-hour-break exhaustion             | Para 1 (7-hr break, admitted); the Regulator's own Reviewing Officer's finding (Review Decision, 24 Oct 2024) that the rostering amounted to unreasonable management action, and that the Appellant's employment was a significant contributing factor (relevance reserved on the de novo hearing); Para 8 (Switchboard patient-safety function, admitted) | Whether the rostering, and the safety-critical load coordinated under exhaustion, was reasonable management action taken in a reasonable way  |
| 2    | Aggregate SPOK activation counts (by code type)                                                                                                                                                                                | Stressors 1(a)/3: the volume of emergency coordination the role bore                 | Para 8 (patient-safety function admitted)                                                                                                                                                                                                                                                                                                                  | The weight and criticality of the role against which the management conduct must be assessed                                                  |
| 3(a) | Misroute / "wrong team" / "pager error" complaints corpus + an aggregate monthly count showing volume and any increase across the period (server-side filter, named custodians); received at first instance at the Switchboard | Stressor 1(a): dereliction of clinical governance; delay to urgent pathology results | Para 5 (Reese's rostering-error acknowledgment); Item 3(c) "no consequential changes"                                                                                                                                                                                                                                                                      | Whether the unilateral directives bottlenecked emergency workflows, the scale and trend of the conduct, and whether management's response was |

| Item | Document sought                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Matter in issue (Amended 9A)                                                                                            | Anchor (Form 24 admitted facts)                                                                                                                                                                          | What the document tends to prove on s 32(5)(a)                                                                                                                 |
|------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------|
|      | (Affidavit ¶¶19–21)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                         |                                                                                                                                                                                                          | reasonable                                                                                                                                                     |
| 3(b) | Management discussion of those complaints and what action (if any) was taken (minutes, action registers, remedial-action records)                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Stressor 1(a): whether the conduct was ever addressed                                                                   | Item 3(c) "no consequential changes" (the admitted absence of remedial action)                                                                                                                           | Whether management acted reasonably on known clinical-governance failures                                                                                      |
| 9    | Security-access swipe-card / building-access records, confined to the pleaded-conduct windows                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Stressor 1(a): manager's on-site availability on identified occasions                                                   | The manager-availability complaints (Affidavit ¶20)                                                                                                                                                      | Whether the manager was present/available when a directive issued or a complaint was left unacted, not an audit of her movements                               |
| 10   | Manager email by server-side filter: (a) an aggregate monthly count for volume (metadata only); (b) "effective immediately" and cognate phrases ("with immediate effect", "effective from", "as of today") (subject or body; Line-Manager account → Switchboard shared mailbox); (c) operational-directive phrase-families ("wrong ward/team/doctor", "pager error", "out of date", "update the list"); (d) Manager → Director re the retracted email and the 9 May 2024 comparator; (e) Payroll → Line-Manager AVAC correspondence (the Appellant's own PRNs 15397775/15605601, 1–31 May 2024) | Stressors 1(a) (unilateral directives) and 1(f) (disparate treatment); and, for (e), Stressor 2 (the 25-day AVAC delay) | Para 21 (retraction directed, admitted); Para 22 (the comparator email — denied: "the circumstances were different"; the disparate-treatment fact this Item targets); Paras 40–41 (AVAC delay, admitted) | The directives' character and the disparate treatment; the count proves volume without the corpus ( <i>Delaney</i> ); (e) corroborates the admitted AVAC delay |
| 19   | Union-delegate correspondence (18 May – 18 Jun 2024; named custodians)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Stressor 1(g): suppression of industrial                                                                                | Para 17 (QH-POL-248 "positive, supportive role" — admitted); Para 18 (the text notification — admitted)                                                                                                  | Whether the failure to facilitate the delegate appointment was reasonable                                                                                      |

| Item | Document sought | Matter in issue<br>(Amended 9A) | Anchor (Form 24<br>admitted facts)                                                                                                                                          | What the document<br>tends to prove on s<br>32(5)(a) |
|------|-----------------|---------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------|
|      |                 | representation                  | as sent, characterised as<br>informal); Para 19 (failure<br>to facilitate >9 months —<br><b>denied</b> on three grounds:<br>this is the contested fact the<br>Item targets) | management action                                    |

The produce-or-swear Items (1–2, 3(c), 4, 5, 7, 18, 20) bear on the same elements as sworn negatives: a hospital that cannot produce its emergency-code logs, its fatigue risk assessment, the destroyed communication-book record, or its operational response to a complaint thereby places the very gaps the s 32(5)(a) inquiry turns on onto the record, on oath (see Part B(b)).

## SCHEDULE C — REQUIRED CONTENTS OF THE VERIFICATION AFFIDAVIT (Part B(b))

This Schedule states what the verification affidavit must depose to. It is directed only to verifying, after a defined search, what exists and what is to be produced; it is not directed to any wider inquiry into MSH's conduct. So that a statement of non-existence is verified rather than asserted in the abstract, the affidavit must address the following.

### Part 1 — For every Item for which production is sought, or non-existence, destruction or irrelevance is asserted, the affidavit must depose:

- (1) that a search was in fact undertaken (a bare assertion of non-existence, unsupported by a deposed search, being insufficient); the name and position of the person who conducted the search, and whether that person had access to the systems searched; the systems, mailboxes, repositories and custodians searched; the search terms, filters and date-range applied; and the date on which the search was undertaken;
- (2) whether the record exists as at the date of the affidavit; if it does not, whether it ever existed; and, if it once existed, when and by what means it ceased to exist (deletion, system migration, archiving, disposal or destruction), on whose authority or instruction, and under what retention policy or schedule;
- (3) whether any copy, backup, archive, export, migrated instance, or version held on any superseding system exists, and if so its production;
- (4) where any document already before the Commission, or disclosed in this proceeding, appears to fall within the Item, identification of that document and either its production or the precise basis on which it is said to fall outside the Item; and
- (5) the name and position of any officer on whose knowledge the deponent relies for the above, that officer's account being exhibited or separately sworn.

## Part 2 — Item-specific matters, in addition to Part 1:

- **Items 1–2 (SPOK emergency-code / paging records — "not retained" must be sworn):** the date and nature of the SPOK "upgrade"; whether the pre-upgrade records were migrated to, retained in, or are retrievable from the upgraded system or any successor or backup, with the production of any that are retrievable and, for any that are not, the reason they are said to be irretrievable and the date and authority on which they ceased to be retained. As to the "spreadsheet of recorded MET calls" for 17–18 March 2024 — its identity, author, custodian and source system, and whether it is (a) an export from the SPOK system itself, (b) an MSH-maintained administrative record, or (c) the Appellant's own monthly call-statistics sheet (which tallies call and emergency-code *volume* only) — together with its production. If it is (c), the affidavit must confirm that the SPOK *system-level* records — which clinician was paged, whether each page was received or acknowledged, whether any page was misdirected, and the associated timestamps — have been separately searched, those system-level records being held only by MSH and not by the Appellant (Affidavit ¶9).
- **Item 3(c) (consequential changes — "no changes" must be sworn):** each change to Switchboard operating procedures, reporting lines or systems over the noticed period, with its date — addressing in terms the SPOK upgrade, the Switchboard reporting-line reorganisation, the issue of a Queensland Health device to the Line Manager, and the introduction of a separate Switchboard Telecommunications Coordinator role together with any restriction of contact-number and directory-database updates to that role — or, if there was no such change, a statement to that effect on oath; and in either case the reconciliation of the answer with the statement in the letter that there were "no consequential changes".
- **Items 4 and 7 (fatigue risk-assessment / register — "none exist" must be sworn):** whether any fatigue risk-assessment or register record referable to the Switchboard work area existed as at 17–18 March 2024 (as distinct from training records); if so, its production; if not, a statement on oath that none existed.
- **Item 5 (fatigue framework — identify the policy, or swear none applied):** each fatigue-risk-management policy, directive, guideline or framework (including any under the Queensland Health Fatigue Risk Management System) that applied to the Switchboard work area, or to its non-clinical administrative staff, as at 17–18 March 2024 — identified by name and number — or, if none applied, a statement on oath to that effect; and in either case the date on which fatigue risk management was implemented at the Switchboard, reconciled with MSH's statement that it occurred only "after 30 June 2024".
- **Item 16 (AVAC payroll export):** production of the AVAC payroll-system export for PRN 15397775 and PRN 15605601, or a sworn statement that no such export exists (the Daily Staffing Variance Forms already produced not being that export).
- **Item 18 (communication book; 15 November 2023 business-case minutes):** whether each record exists; and if either was destroyed, when, by whom, and under what authority.
- **Item 20 (operational / HR response, 13–31 May 2024):** whether records of the operational and human-resources response to the matters raised in that window exist, addressing in terms the correspondence of 15–16 May 2024 disclosed by the Respondent on 11 June 2026, independently of when the reference "PID24-ESU-1130" was assigned.